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IN THE HIGH COURT OF KARNATAKA, BANGALORE

(ORIGINAL JURISDICTION)

W.P. No. 14954 2018(UOM)

BETWEEN:

Nirmala N.

...Petitioner

AND:

State of Karnataka & Others

...Respondents

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Bangalore.

Date: 06.04.2018

Advocate for Petitioner
Amruth S Chowdhary

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IN THE HIGH COURT OF KARNATAKA, BANGALORE

(ORIGINAL JURISDICTION)

W.P. No. / 2018(UOM)

BETWEEN:

Nirmala N.

...Petitioner

AND:

State of Karnataka & Others

...Respondents

SYNOPSIS

Date	EVENTS
01.08.2006	That the Petitioner was appointed as a Typist-cum-clerk in University of Mysore. since the petitioner was only the person who was qualified with English & Kannada Shorthand and there were no persons in the Administrative Department who were qualified with both English & Kannada language in shorthand, the petitioner was given the work of stenographer where dictations in syndicate meetings, conferences, preparation of orders etc.... and in various aspects where a stenographer is required the captioned petitioner was summoned, therefore from the first day of the appointment the petitioner carried out a job of stenographer.
	Petitioner made the representation to the Vice chancellor that, since she is doing the job of stenographer and also having the required qualifications for the post of stenographer and in addition there were no other persons available with qualifications kindly appoint the petitioner as a stenographer
15.10.2014	Respondent No.3 assured she would be promoted as the Stenographer. On 15 October 2014 the Respondent No2 passed the order No. ET5/364/2002-03 where the captioned petitioner is to be deemed to have been promoted as stenographer from 01.08.2008.
	That the petitioner made another representation to the Respondent No.3 stating that since she is been working as a stenographer from the day one of her appointment but at Annexure C it was ordered that the promotion is to be taken effect from 01.08.2008 where the services of two years is been totally ignored while passing the order.

27.01.2017	That Respondent No.3 Hon'ble Vice Chancellor (Sri K.S Rangappa) after considering the fact and after several meetings held only on this issue came to the opinion that the captioned petitioner is been working as stenographer from the day one of the appointment but the designation is of Typist-cum-clerk and after considering that, on the date of appointment i.e. on 01.08.2006 where she possesses all qualifications required for the stenographer, therefore came to conclusion that she is eligible and directed the Respondent No.2 to consider her services and pass order accordingly. The Respondent No.2 passed the Order dated 27.01.2017 stating that the Captioned petitioner is deemed to have been working as stenographer and not as Typist-cum-clerk from 01.08.2006 (Date of appointment).
18.02.2017	The Respondent No.2 decided to fix the additional benefit to the petitioner i.e. to be added to the salary of the petitioner with effect from 27.01.2017
18.01.2018	That when the New Vice Chancellor (Sri V.C Basavaraju) was appointed to the University Respondent No.3 directed Respondent No.2 pass impugned order arbitrarily for the better reasons known to him. That the Respondent No.2 passed the order which states that the earlier order dated at Annexure C & order dated 27.01.2017 at Annexure E i.e. fixation of salary is been taken back immediately and the petitioner is to be considered as stenographer from 15.01.2014 and not from 01.08.2006 and further the additional pay given from 27.01.2017 to till date is to be recovered from future salary of the Petitioner. Therefore by passing two contrary orders without having appellate jurisdiction has now put the caption petitioner in hardship. In addition the petitioner is been transferred from the Administrative Dept to the SC/ST cell, and given miscellaneous work, which in other words can be said as type of a punishment. Wherefore the petitioner is before my Lordship for Justice.

BRIEF FACTS OF THE CASE

That the Petitioner was appointed as a Typist-cum-clerk in University of Mysore. since the petitioner was only the person who was



qualified with English & Kannada Shorthand and there were no persons in the Administrative Department who were qualified with both English & Kannada language in shorthand, the petitioner was given the work of stenographer where dictations in syndicate meetings, conferences, preparation of orders etc.... and in various aspects where a stenographer is required the captioned petitioner was summoned, therefore from the first day of the appointment the petitioner carried out a job of stenographer. Petitioner made the representation to the Vice chancellor that, since she is doing the job of stenographer and also having the required qualifications for the post of stenographer and in addition there were no other persons available with qualifications kindly appoint the petitioner as a stenographer. Respondent No.3 assured she would be promoted as the Stenographer.

On 15 October 2014 the Respondent No2 passed the order No. ET5/364/2002-03 where the captioned petitioner is to be deemed to have been promoted as stenographer from 01.08.2008.

That the petitioner made another representation to the Respondent No.3 stating that since she is been working as a stenographer from the day one of her appointment but at Annexure C it was ordered that the promotion is to be taken effect from 01.08.2008 where the services of two years is been totally ignored while passing the order.

That Respondent No.3 Hon'ble Vice Chancellor (Sri K.S Rangappa) after considering the fact and after several meetings held only on this issue came to the opinion that the captioned petitioner is been working as stenographer from the day one of the appointment but the designation is of Typist-cum-clerk and after considering that, on the date of appointment i.e. on 01.08.2006 where she possesses all qualifications required for the stenographer, therefore came to conclusion that she is eligible and directed the Respondent No.2 to



consider her services and pass order accordingly. The Respondent No.2 passed the Order dated 27.01.2017 stating that the Captioned petitioner is deemed to have been working as stenographer and not as Typist-cum-clerk from 01.08.2006 (Date of appointment). The Respondent No.2 decided to fix the additional benefit to the petitioner i.e. to be added to the salary of the petitioner with effect from 27.01.2017.

That when the New Vice Chancellor (Sri V.C Basavaraju) was appointed to the University Respondent No.3 directed Respondent No.2 pass impugned order arbitrarily for the better reasons known to him. That the Respondent No.2 passed the order which states that the earlier order dated at Annexure C & order dated 27.01.2017 at Annexure E i.e. fixation of salary is been taken back immediately and the petitioner is to be considered as stenographer from 15.01.2014 and not from 01.08.2006 and further the additional pay given from 27.01.2017 to till date is to be recovered from future salary of the Petitioner.

Therefore by passing two contrary orders without having appellate jurisdiction violating Article. 14 of constitution the Respondents has now put the caption petitioner in hardship, In addition the petitioner is been transferred from the Administrative Dept to the SC/ST cell, and given miscellaneous work, which in other words can be said as type of a punishment. Wherefore the petitioner is before my Lordship for Justice. Hence this writ petition.

Bangalore
Date: 06.04.2018

Advocate for Petitioner
Amruth S Chowdhary

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IN THE HIGH COURT OF KARNATAKA, BANGALORE
(Original Jurisdiction)

BETWEEN:

W.P. No. / 2018(UOM)

14754

N. Nirmala,
D/o. Narashimaiah,
Aged about 50 years,
#598/1, Peerkhan Street,
Nazarbad,
Mysore-570010

...Petitioner

AND:

1. State of Karnataka,
Education Department, (University)
M.S. Building,
Bangalore - 560 001
Represented by its Secretary.
2. University of Mysore,
Vishwavidyalaya, Karyasoudha,
Crawford Hall
Mysore- 570001
Bangalore-65
Reptd. By its Registrar.
3. Vice chancellor,
University of Mysore
Mysore-570001

...Respondents

MEMORANDUM OF WRIT PETITION UNDER ARTICLES 226
AND 227 OF CONSTITUTION OF INDIA

The Petitioner above named respectfully submits as follows:

FACTS OF THE CASE

1. The petitioner herein has completed her Master in commerce
M.Com on 29.03.1992 continued with following qualifications
 - a) Senior English typewriting on 30.06.1986,
 - b) Post graduation in Diploma in Computer Applications on
07.07.1993,

- c) Senior English Shorthand on 14.01.2000,
- d) Senior Kannada Typewriting on 02.08.2000,
- e) Senior Kannada Shorthand on 31.07.2001.

The copy of the captioned-qualifications secured by the petitioner is herewith marked and produced as **Annexure A, A1, A2, A3, A4 & A5.**

2. It is submitted that on 01.08.2006 the Respondent No2 appointed the captioned petitioner as a Typist-cum-clerk in University of Mysore as vacancy caused by the retirement of Mr. Hombaiah and accordingly the pay scale was fixed and the probation period was fixed to 2 years from the date of appointment. The copy of the appointment order No ET1/355(55)/2003-2004 dated 01.08.2006 is herewith marked and produced as **Annexure B.** It is further submitted that however the appointment was for the post of Typist-cum-clerk but since the petitioner was only the person who was qualified with English & Kannada Shorthand and there were **no persons in the Department** who were qualified with both language in shorthand, the petitioner was given the work of stenographer where dictations in syndicate meetings, conferences, preparation of orders etc.... and in various aspects where a stenographer is required the captioned petitioner was summoned, therefore from the first day of the appointment the petitioner carried out a job of stenographer.

3. It is submitted that the petitioner made the representation to the Vice chancellor that, since she is doing the job of stenographer and also having the required qualifications for the post of stenographer and in

addition there were no other persons available with qualifications kindly appoint the petitioner as a stenographer, for which the Vice chancellor assured she would be promoted as the Stenographer. It is further submitted that on 15 October 2014 the Respondent No.2 passed the order No. ET5/364/2002-03 where the captioned petitioner is to be deemed to have been promoted as stenographer from 01.08.2008. The copy of the order No. ET5/364/2002-03 dated 15.10.2014 passed by the Respondent No.2 is herewith marked and produced as Annexure C.

4. It is submitted that the petitioner made another representation to the Respondent No.3 stating that since she is been working as a stenographer from the day one of her appointment but at Annexure C it was ordered that the promotion is to be taken effect from 01.08.2008 where the services of two years is been totally ignored while passing the order. The Respondent No.3 after considering the fact directed the Respondent No.2 to consider her services and pass order. It is further submitted that the Respondent No.2 passed the Order dated 27.01.2017 stating that the Captioned petitioner is deemed to have been working as stenographer and not as Typist-cum-clerk from 01.08.2006 (Date of appointment) and accordingly the salary is to be fixed in further orders. The copy of the Order No. ET5/91/2001-2002 passed by the Respondent No.2 dated 27.01.2017 is herewith marked and produced as Annexure D.



5. It is submitted that Respondent No.2 as per the order dated 27.01.2017 at Annexure D, now fixed the salary to the petitioner as per the changing of the petitioner job from Typist-cum-clerk to that of the Stenographer which is taken effect from the date of appointment i.e 01.08.2006. The Respondent No.2 decided to fix the additional benefit to the petitioner i.e. to be added to the salary of the petitioner with effect from 27.01.2017. The copy of the fixation of the salary in Order No 'ET6/301/2016-17 dated 18.02.2017 is herewith marked and produced as Annexure E. It is further submitted that the petitioner finally got justice for all the services rendered by her from the day one of her appointment. at Annexure E
6. It is submitted that the Respondent No.2 arbitrarily for the better reasons known to him passed the order which states that the promotion given with effect 01.08.2008 at Annexure C & order dated 27.01.2017 at Annexure E i.e fixation of salary is been taken back immediately and the petitioner is to be considered as stenographer from 15.01.2014 and not from 01.08.2006 and further the additional pay given from 27.01.2017 to till date is to be recovered from future salary of the Petitioner. The copy of the impugned order passed by the Respondent No.2 dated 18.01.18 in order No.ET5/91/2001-2002 is herewith marked and produced as Annexure F.
7. It is further submitted that the Respondent No.2 falsely in arbitrary manner for the better reasons known to him stated in his impugned

order at Annexure F that since there were people named Smt Kumuda, Smt Hemalatha, Smt Shārada being in seniority list the captioned petitioner is not entitled for such benefit but the truth is all the three people were appointed in the year 2008 and the petitioner is been appointed in the year 2006 therefore even is seniority wise the captioned petitioner remains the senior among them.

8. It is submitted that as per the statutes of the University of Mysore for the post of stenographer states that *"if adequate number of candidates with the qualification mentioned are not available on any occasion of recruitment, for the vacancies which remain unfilled, candidates who possess qualifications required for stenographer shall be eligible for recruitment/promotion"*. It is further submitted that the captioned petitioner on the date of appointment i.e 01.08.2006 was qualified for the post of stenographer as per Annexure A to A5 and there were no persons available to do the work of stenographer at that time where the petitioner used work as stenographer for whole time. The copy of the statue is herewith marked and produced as **Annexure G**.
9. That under the circumstances the Respondent No.2 has clearly violated the Article 14 by passing such order wherefore the Petitioner is left with no other alternate and efficacious remedy except to approach this Hon'ble Court under Article 226 and 227 of the Constitution of India on the following amongst other grounds.



10. The Petitioner has not preferred any Writ Petition against the said order other than this Writ Petition

G R O U N D S

11. That Respondent No.3 Vice Chancellor (Sri K.S Rangappa) after considering the fact and after several meetings held only on this issue came to the opinion that the captioned petitioner is been working as stenographer from the day one of the appointment but the designation is of Typist-cum-clerk and after considering that, on the date of appointment i.e. 01.08.2006 she possesses all qualifications required for the stenographer, therefore directed the Respondent No.2 to consider her services and pass order. It is further submitted that the Respondent No.2 passed the Order dated 27.01.2017 stating that the Captioned petitioner is deemed to have been working as stenographer and not as Typist-cum-clerk from 01.08.2006 (Date of appointment).
12. That when the New Vice Chancellor (Sri V.C Basavaraju) was appointed to the University for the Better Reasons known to Respondent No.3 has now made the Respondent No.2 to pass such contrary orders. That the captioned petitioner who is working from 01.08.2006 in Administrative Department of the University is now all of a sudden transferred to SC/ST Cell, (which can be said like a Punishment) for the better reasons known to Respondent No.3.

13. That the impugned order passed by the Respondent No.2 is itself contrary to the orders passed earlier which clearly shows the illegality, arbitrariness on the part of Respondent No.2 for the better reasons known to him.
14. That it is well known principle that once the Judgement/orders is been passed it can be challenged only by the way of Appeal by the aggrieved party, the same court/authority has no power to pass two contrary Judgment/orders on same cause of action. As said in legal maxim "MEMO DEBET BIS VEXARI PRO UNA ET EADEM CAUSA" (no man should be vexed twice over for the same cause). But here the Respondent No.2 misusing his power even without having appellate jurisdiction passed the impugned orders at Annexure F which is inappropriate and illegal.
15. That the petitioner appointment was for the post of Typist-cum-clerk but since from the first day of the work the petitioner was only the person who was qualified with English & Kannada Shorthand and there were no other persons in the Administrative Department who were qualified in shorthand with both English and Kannada language, therefore in the Administrative Department All the work relating to shorthand was given to the captioned petitioner, however the petitioner was getting the salary of an Typist-cum-Clerk but whole work which was given is of an stenographer (stenographer salary is higher than the Typist-cum-clerk salary).



16. That the Respondent No.2 without giving proper reasoning has now passed the impugned order at Annexure F which is absolutely contrary to the earlier orders passed. This shows that due to some influence or pressure or any other reasons better known to him has now made him to take such step even without having proper appellate jurisdiction.
17. That as per the statutes of the University of Mysore for the post of stenographer states that *"if adequate numbers of candidates with the qualification mentioned are not available on any occasion of recruitment, for the vacancies which remain unfilled, candidates who possess qualifications required for stenographer shall be eligible for recruitment/promotion"*. It is further submitted that the captioned petitioner on the date of appointment i.e. 01.08.2006 was qualified for the post of stenographer as per Annexure A to A5 and there were no persons available to do the work of stenographer at that time where the petitioner used work as stenographer for whole time.
18. That the Respondent No.2 has ignored the statute which makes the petitioner eligible since she is having all the necessary qualifications required for the stenographer at the time of appointment and the work given to the petitioner from the first day of job is of the nature of stenographer.



P R A Y E R

Wherefore, the Petitioner most humbly prays that this Hon'ble Court that :

- i. Issue a writ in the nature of certiorari quashing the Impugned Order No: ET/91/2001-2002 dated 18.01.2018 passed by the Respondent No.2 vide Annexure F.
- ii. Issue a writ in the nature of mandamus or any other appropriate writ, order or direction directing respondent No.2 & 3 to transfer her back to Administrative Department.
- iv. Pass any such other direction or order or writ as may deem fit to this Hon'ble Court may kindly be issued.

INTERIM PRAYER

- v. Pending disposal of the above writ petition, interim order of stay, staying the operation and execution of the order dated 18.01.2018: in Order No. ET/91/2001-2002 passed by Respondent No.2 at Annexure-F in the interest of justice and equity.

Bangalore

Date: 06.04.2018

Advocate for Petitioner
(Amruth S Chowdhary)

Address for Service:

Amruth S Chowdhary
"Nandi" 25/1, 2nd cross,
Ajjappa Block,
Dinnur Main Road
R.T.Nagar,
Bangalore - 560 032.

9972556028.



= 16 -

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

W.P. No.

/2018 (UOM)

BETWEEN:

Nirmala N.

...Petitioner

AND

State of Karnataka
& others

...Respondents

VERIFYING AFFIDAVIT

I, Kum. N. Niramala D/o Narasimhaiah, aged about 50 years, residing at # 598/1, Peer Khan Street, Nazarbad, Mysuruu 570 010, today at Bengaluru do hereby solemnly affirm and state on oath as follows:

1. I submit that, I am the Petitioner in the above Petition. I know the facts and circumstances of the case. Hence I am swearing to this affidavit.
2. I submit that, the averments made in para No.1 to 22 of the accompanying Writ petition are true and correct to the best of my knowledge, information and belief.
3. I submit that, the Annexures A to G are true copies of originals.

What is stated above are true and correct.

Identified by me

Advocate

Place : Bangalore

Date : 07-04-2018

N. Niramala N.





KARNATAKA SECONDARY EDUCATION EXAMINATION BOARD

BANGALORE

Date: 30/06/88

Signature of the Candidate: *[Signature]*

Signature of the Examiner: *[Signature]*

Stamp: *[Circular Stamp]*

Handwritten: *0007*

TOTAL IN WORDS ONE HUNDRED AND TWENTY FOUR ONLY

THE MARKS OBTAINED	AND SECURED A	SECOND CLASS	THE FOLLOWING ARE
DURING MARCH-1988			
WITH REGISTER NO. 000722			
APPEARED FOR THE ENGLISH & PAPER WRITING SENIOR			
SON/Daughter of NARASIMH S			
NIRMALA N			

Confidential

DESIGNED BY FORMS LTD.

Karnataka Secondary Education Examination Board

COMMERCE EXAMINATION

18

10

41

Book No. 3

Sl. No. 274

UNIVERSITY OF MYSORE



OFFICE OF THE
UNIVERSITY OF MYSORE
MYSORE-570 005

STATEMENT OF MARKS

Dated. 7 JUL 1993

Second Semester Post-Graduate Diploma Examination in Computer Applications

May 1993

Name: Nirmala N

Reg. No. 4628

Code No.	Subject	Written/Practical Examination		Internal/Sessional Assessment		Total		Finality Result
		Max. Marks	Marks Obtained	Max. Marks	Marks Obtained	Max. Marks	Marks Obtained	
CA 2.11	Computer Based Numerical Methods I	100	72	25	24	125	96	
CA 2.12	Advanced Business Data Processing	100	72	25	24	125	96	
CA 2.21	Computer Graphics	100	72	25	24	125	96	
CA 2.31	Computer Lib 2.3A & Project	100	72	25	24	125	96	
CA 2.32	Computer Lib 2.3B & Project	100	72	25	24	125	96	
Total of Second Semester		500	360	125	120	625	380	
Total of First Semester		500	360	125	120	625	380	
Total of Two Semesters		1000	720	250	240	1250	620	

Signature of the Head of the Institution

Signature of the Head of the Institution

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ಕರ್ನಾಟಕ ಸರ್ಕಾರ
GOVERNMENT OF KARNATAKA

13
01/2000

9

ಕರ್ನಾಟಕ ಪ್ರೌಢ ಶಿಕ್ಷಣ ಪರೀಕ್ಷಾ ಮಂಡಳಿ
Karnataka Secondary Education Examination Board
ವಾಣಿಜ್ಯ ಪರೀಕ್ಷೆಗಳ ಪ್ರಮಾಣ ಪತ್ರ
Commerce Examination Certificate

ಈಗ ನಮೂದಿಸಿರುವ ಅಭ್ಯರ್ಥಿಯು ವಾಣಿಜ್ಯ ಪರೀಕ್ಷೆಯಲ್ಲಿ ಈಗಿನ ವಿವರಗಳೊಂದಿಗೆ
ತೀರಗಡೆಯಾಗಿದ್ದಾನೆ/ಳೆಂದು ಪ್ರಮಾಣೀಕರಿಸಲಾಗಿದೆ.
This is to certify that the candidate mentioned below has passed
Commerce Examination with the following details

ರೋಲೆ/ನಂ Register No.	032057	ಮಾಸ/ವರ್ಷ Month/Year	NOV 2000
ಅಭ್ಯರ್ಥಿಯ ಹೆಸರು Name of the Candidate: NIRMALA N			
ತಂದೆಯ ಹೆಸರು Name of the Father: NARASAI AH S			
ವಿಷಯ Subject: ENGLISH SHORTHAND SENIOR			
ಪಾಠ್ಯಪುಸ್ತಕ Paper: 1			
ಪಾಠ್ಯಪುಸ್ತಕ Paper: 2			
ಪಾಠ್ಯಪುಸ್ತಕ Paper: 3			
ಪಾಠ್ಯಪುಸ್ತಕ Paper: 4			
ಪಾಠ್ಯಪುಸ್ತಕ Paper: 5			
ಪಾಠ್ಯಪುಸ್ತಕ Paper: 6			
ಪಾಠ್ಯಪುಸ್ತಕ Paper: 7			
ಪಾಠ್ಯಪುಸ್ತಕ Paper: 8			
ಪಾಠ್ಯಪುಸ್ತಕ Paper: 9			
ಪಾಠ್ಯಪುಸ್ತಕ Paper: 10			

ಒಟ್ಟು ಅಂಕಗಳು ಅಕ್ಷರಗಳಲ್ಲಿ
Total marks in words ONE HUNDRED AND FORTY THREE ONLY INST-E009

ಬೆಂಗಳೂರು
Bangalore

ದಿನಾಂಕ
Date 14/01/2000

ಕಾರ್ಯದರ್ಶಿಗಳು
ಕರ್ನಾಟಕ ಪ್ರೌಢ ಶಿಕ್ಷಣ ಪರೀಕ್ಷಾ ಮಂಡಳಿ
Secretary
Karnataka Secondary Education Examination Board

ಪ್ರಮಾಣ ಪತ್ರವನ್ನು
ಪಡೆದಿದೆ
Received by me on 14/01/2000

A. Channarayana
Principal
Signature of the Principal

ಅಭ್ಯರ್ಥಿಯ ಸಹಿ
Signature of the Candidate

ಕರ್ನಾಟಕ ಸರ್ಕಾರ
GOVERNMENT OF KARNATAKA

A4.

9

0203358

ಕರ್ನಾಟಕ ಪ್ರೌಢ ಶಿಕ್ಷಣ ಪರೀಕ್ಷಾ ಮಂಡಳಿ
Karnataka Secondary Education Examination Board



ವಾಣಿಜ್ಯ ಪರೀಕ್ಷೆಗಳ ಪ್ರಮಾಣ ಪತ್ರ
Commerce Examination Certificate

ಕೆಳಗೆ ನಮೂದಿಸಿರುವ ಅಭ್ಯರ್ಥಿಯು ವಾಣಿಜ್ಯ ಪರೀಕ್ಷೆಯಲ್ಲಿ ಕೆಳಗಿನ ವಿವರಗಳೊಂದಿಗೆ
ತೀರ್ಮಾನವಾಗಿರುವ/ಳೆಂದು ಪ್ರಮಾಣೀಕರಿಸಲಾಗಿದೆ.

This is to certify that the candidate mentioned below has passed the
Commerce Examination with the following details

ನೋಂದಣಿ ಸಂಖ್ಯೆ Register No.	029134	ಮಾಸ/ವರ್ಷ Month/Year	MAY-2000
ಅಭ್ಯರ್ಥಿಯ ಹೆಸರು Name of the Candidate	NIRMALA N		
ಪಿತೃ ಹೆಸರು Name of the Father	NARASIMAH S		
ವಿಷಯ Subject	KANNADA-TYPEWRITING SENIOR SECOND		
ಪತ್ರಿಕೆ Paper	1		
ಮಾರ್ಕುಗಳು Marks	54		

ಒಟ್ಟು ಅಂಕಗಳು: ಅಕ್ಷರಗಳಲ್ಲಿ
Total marks in words ONE HUNDRED AND TWENTY ONE ONLY INST-ED12

ಬೆಂಗಳೂರು
Bangalore

ದಿನಾಂಕ
Date 02/08/2000



ಪ್ರಾಂಶುಪಾಲರ ಸಹಿ ಮತ್ತು ಮುದ್ರೆ
Signature of the Principal

ಕರ್ನಾಟಕ ಪ್ರೌಢ ಶಿಕ್ಷಣ ಪರೀಕ್ಷಾ ಮಂಡಳಿ
Karnataka Secondary Education Examination Board

ಪ್ರಮಾಣ ಪತ್ರವನ್ನು
ಪಡೆದಿದೆ
Received by me on

ಅಭ್ಯರ್ಥಿಯ ಸಹಿ ಮತ್ತು ಮುದ್ರೆ
Signature of the Candidate

ಕರ್ನಾಟಕ ಸರ್ಕಾರ
GOVERNMENT OF KARNATAKA

A 5:0

0247169

(2)

ಕರ್ನಾಟಕ ಪ್ರೌಢ ಶಿಕ್ಷಣ ಪರೀಕ್ಷಾ ಮಂಡಳಿ
Karnataka Secondary Education Examination Board



ವಾಣಿಜ್ಯ ಪರೀಕ್ಷೆಗಳ ಪ್ರಮಾಣ ಪತ್ರ
Commerce Examination Certificate

ಈಗ ನಮೂದಿಸಿರುವ ಅಭ್ಯರ್ಥಿಯು ವಾಣಿಜ್ಯ ಪರೀಕ್ಷೆಯಲ್ಲಿ ಈಗಿನ ವಿವರಗಳೊಂದಿಗೆ
ತೇರ್ಗಡೆಯಾಗಿದ್ದಾನೆ/ಳೆಂದು ಪ್ರಮಾಣೀಕರಿಸಲಾಗಿದೆ.
This is to certify that the candidate mentioned below has passed the
Commerce Examination with the following details

ನೋಂದಣಿ ಸಂಖ್ಯೆ Register No.	036365	ಮಾಸ/ವರ್ಷ Month/Year	MAY-2001
ಅಭ್ಯರ್ಥಿಯ ಹೆಸರು Name of the Candidate	NIRMALA IN		
ತಂದೆಯ ಹೆಸರು Name of the Father	NARASAI AH S		
ವಿಷಯ Subject	KANNADA, SHORTHAND, SENIOR SECOND		
ಪತ್ರಿಕೆ 1 Paper 1	ಪತ್ರಿಕೆ 2 Paper 2	ಪತ್ರಿಕೆ 3 Paper 3	ಒಟ್ಟು Total
66	46	18	130

ಒಟ್ಟು ಅಂಕಗಳು ಆಂಕಗಳಲ್ಲಿ
Total marks in words ONE HUNDRED AND EIGHTY FIVE ONLY INST-EC009

ಬೆಂಗಳೂರು
Bangalore

ದಿನಾಂಕ
Date 31/07/2001

ಕರ್ನಾಟಕ ಪ್ರೌಢ ಶಿಕ್ಷಣ ಪರೀಕ್ಷಾ ಮಂಡಳಿ
Secretary
Karnataka Secondary Education Examination Board

ಪ್ರಮಾಣ ಪತ್ರವನ್ನು _____ ರಂದು
ಪಡೆದಿದ್ದೇನೆ.
Received by me on 30/8/2001

A. Ananthanarayana
ಪ್ರಾಥಮಿಕ ಶಿಕ್ಷಕರು
Signature of the Principal

0247169
ಅಭ್ಯರ್ಥಿಯ ಸಹಿ
Signature of the candidate



-23- A ⑤

UNIVERSITY OF MYSORE

Crawford Hall, Post Box No 406
Mysore - 570 005.

Sub: Filling up of the existing clear vacancies in various Non-teaching cadres in the university.

- Ref:** (1) Supreme Court Judgment Dated 10.4.2006 in Civil Appeal No. 3595-3612 of 1999 and connected Appeals.
(2) Government Circular No.DPAR 25 SLC 2003 Dated 25.5.2006
(3) Government Letter No ED 54 UNE 2006 Dated 12.6.2006
(4) Syndicate Meeting held on 28.7.2006

PREAMBLE

The University of Mysore being an instrument of State, had placed its requests before the State Government on several occasions for according permission to fill the vacant post in the University. As the permission to fill these vacant posts did not come forth from the Government the university by exercising its inherent powers under the Universities Act appointed employees on daily wages / temporary basis. The University was seeking approval of the Government to regularize such Daily wages / temporary employees who have been working for more than ten years against the vacant posts. It is also pertinent to note here that they possess the requisite qualification as per C & R Rules to hold such posts.

In the meantime, the Constitutional Bench of Supreme Court in The Secretary, Karnataka State V/s. Umadevi's case gave its ruling on regularization of Daily wages / temporary employees on 10.4.2006. Consequent to the judgment, the Government including the instrumentalities of State has decided to give effect to the court ruling. The Circular, which reflects the ruling of the court in letter and spirit, states that the cases of irregular appointments, they not being illegal, of duly qualified persons against the sanctioned vacant posts shall be considered on merit for regularization, provided they have worked for more than ten years against such posts without the intervention of any court, as one time measure. It further stated that all other criteria of public appointment should be followed while regularizing such employees including the reservation norms. The Syndicate after due deliberations on the subject at its meeting held on 20.6.2006, constituted a Sub-Committee to look into this issue and make recommendations on the viability of regularization such employees.

The Syndicate sub-committee after careful study of the Judgment of the Supreme Court and the consequent Government Circular No DPAR 25 SLC 2003 dated 25.5.2006 and the letter No ED54 UNE 2006 dated 12.6.2006, went through all the details of the employees coming under this category and also the cases of the Daily Wage / Temporary employees who have put in less than 10 years of service in various cadres and submitted its report on 14.7.2006.

The Syndicate at its meeting held on 28.7.2006 considered the report of the Sub-Committee and decided as follows:

1. To regularize the services of 35 employees who are working against the existing clear vacancies in the respective cadre for more than 10 years.
2. To appoint 108 employees who are working against the clear vacancies with a probation of 2 years.
3. To absorb 08 employees working in the office of the N.S.S. and SC/ST Cell counting the clear vacancies in the University and then to post them to work in the same office where they are working at present. However, their salary etc. should be met out of the grants received from the respective Sponsoring Agencies.

Typist
10/11/06

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Further, it is decided to follow the Government orders issued from time to time in respect of reservation.

Hence the following order

ORDER NO.ET1/355 (55) /2003-04 DATED 1ST AUGUST 2006

Pursuant to the decision of the Syndicate at its meeting held on 28.7.2006 Smt N. Nirmala is appointed as Typist-Cum-Clerk against the vacancy caused by the Retirement of Sri S. Hombaiah on a basic pay Rs. 3000/- pm. with usual allowances admissible as per Rules in the scale of Rs. 3000-75-3450-100-4450-125-5450.

She is sanctioned special allowance of Rs.90/- per month.

She shall be on probation for a period of 02 years.

She is directed to report himself for duty to the Registrar (Evaluation), University of Mysore, Mysore within Seven (07) days from the date of this order, failing which the offer of appointment shall be treated as cancelled.

At the time of joining to duty the appointee is required to produce all Original Certificates relating to Educational Qualification to the reporting authority for verification and return.

The appointee shall be bound by disciplinary jurisdiction and control of the University as per Mysore University Employees (C.C.A.) Statutes 1983, besides all other applicable Rules.

BY ORDER


REGISTRAR

To

1. Consent Employee;
2. The Registrar (Evaluation), University of Mysore, Mysore;
3. The Finance Officer, University of Mysore, Mysore;
4. The Deputy Registrar (Gen), University of Mysore, Mysore;
5. The PA to the VC / Registrar / FO, University of Mysore, Mysore;
6. Office copy;

-25- C

(4)

UNIVERSITY OF MYSORE
Estd. 1916

Vishwavidyalaya Karya Soudha
Crawford Hall, Post Box No. 406
Mysore - 570005.

Sub: Promotion to the Cadre of Stenographer - reg.
Ref: Representation dated 28.7.2014 submitted by Smt. N. Nirmala,
Typist-Cum-Clerk, Admin. Branch, University of Mysore.

PREAMBLE:

Smt. N. Nirmala has been representing to the University that her claim to the post of Stenographer has been overlooked and the Typist-Cum-Clerks who have not passed Kannada and English Shorthand qualifications were promoted as Stenographers even though she was fully qualified on dates when those Typist-Cum-Clerks were promoted in the year 2007. As per Cadre and Recruitment Statutes, for promotion to the post of Stenographer, it is necessary that Typist-Cum-Clerks must pass both Senior English and Kannada Shorthand examinations. When Typist-Cum-Clerks with both Senior English and Kannada Shorthand are not available, only then the Kannada Shorthand qualified Typist-Cum-Clerks could be considered for promotion as Stenographer as provided in the said C & R Statutes.

The services of Smt. Nirmala was regularized from 1.8.2006 in the cadre of Typist-Cum-Clerk and she completed her probation period satisfactorily on 31.7.2008. It is noted, as on 1.8.2008 that there are vacancies of the post of Stenographer. Having regard to these facts, the matter is carefully considered and decided to promote Smt. Nirmala with effect from 1.8.2008 immediately after completion of her probation period against one of the vacant posts of Stenographer.

Accordingly the following order is issued.

ORDER NO. ET5/364/2002-03, DATED 15TH OCTOBER 2014

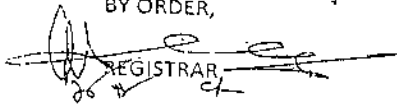
Pursuant to the approval of the Hon'ble Vice-Chancellor, University of Mysore, Mysore, and in accordance with the Cadre and Recruitment Statutes pertaining to the post of Stenographer, Smt. N. Nirmala, Typist-Cum-Clerk, is deemed to have been promoted as Stenographer from 1.8.2008.

Her pay is notionally fixed at Rs. 18,550/- per month from 1.8.2014 in the pay scale of Rs. 16000-29600 with special allowance as applicable to the post. Her date of next increment would be 1.8.2015. She is not entitled to any arrears of pay and allowances consequent on this retrospective promotion. However, the monetary benefit is allowed from 1.8.2014.

The earlier promotion given to Smt. Nirmala as a Stenographer in the University Order of even number dated 6.6.2014 stands superseded.

DRAFT APPROVED BY THE REGISTRAR

BY ORDER,


REGISTRAR

To:

- 1) Smt. N. Nirmala, Stenographer, Admin. Branch, University of Mysore, Mysore.
- 2) The Finance Officer, University of Mysore, Mysore.
- 3) The Govt. Auditor, University of Mysore, Mysore.
- 4) The Deputy Registrar (Gen.), Admin. Branch, University of Mysore, Mysore.
- 5) The Assistant Registrar (Gen.), Admin. Branch, University of Mysore, Mysore.
- 6) The Superintendent (Gen./Estt.), Admin. Branch, University of Mysore, Mysore.

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D.



ಮೈಸೂರು ವಿಶ್ವವಿದ್ಯಾನಿಲಯ

ವಿಶ್ವವಿದ್ಯಾನಿಲಯ ಕಾರ್ಯಸೌಧ
ಕ್ರಾಫ್ಟ್ ಭವನ, ಮೈಸೂರು-570 005

ವಿಷಯ: ಶ್ರೀಮತಿ.ಎನ್.ನಿರ್ಮಲ, ಶೀಘ್ರಲಿಪಿಗಾರರು ಇವರ ಹುದ್ದೆಯ ಪದನಾಮ
ಬದಲಾವಣೆ ಕುರಿತು
ಉಲ್ಲೇಖ: ವಿ.ವಿ.ಆದೇಶ ಸಂಖ್ಯೆ:ಇಟಿ/355(55)/2003-04, ದಿನಾಂಕ:01.08.2006

ಆದೇಶ ಸಂಖ್ಯೆ:ಇಟಿ5/91/2001-02, ದಿನಾಂಕ 27ನೇ ಜನವರಿ 2017

ಮಾನ್ಯ ಕುಲಪತಿಗಳ ಅನುಮೋದನೆ ಮೇರೆಗೆ, ಶ್ರೀಮತಿ.ಎನ್.ನಿರ್ಮಲ, ಶೀಘ್ರಲಿಪಿಗಾರರು, ಆಡಳಿತ ಶಾಖೆ, ಮೈಸೂರು ವಿಶ್ವವಿದ್ಯಾನಿಲಯ, ಮೈಸೂರು ಇವರಿಗೆ ಉಲ್ಲೇಖಿತ ಆದೇಶದಲ್ಲಿ ನೇಮಕ ಮಾಡಿರುವ ಬೆರಳಚ್ಚುಗಾರರು/ಗುಮಾಸ್ತರು ಹುದ್ದೆಯಿಂದ ಶೀಘ್ರಲಿಪಿಗಾರರ ಹುದ್ದೆಗೆ ದಿನಾಂಕ:01.08.2006 ರಿಂದ ಜಾರಿಗೆ ಬಂದಂತೆ ಹುದ್ದೆಯನ್ನು ಬದಲಾವಣೆ ಮಾಡಲಾಗಿದೆ.

ದಿನಾಂಕ:01.08.2006ರಿಂದ ಶೀಘ್ರಲಿಪಿಗಾರರ ಹುದ್ದೆಗೆ ಅನ್ವಯಿಸುವ ವೇತನ ಶ್ರೇಣಿಯಲ್ಲಿ ಕಾರ್ಯನಿರ್ವಾಹಿ ವೇತನವನ್ನು ನಿಗದಿಪಡಿಸಿ ಈ ಆದೇಶದ ದಿನಾಂಕದಿಂದ ಆರ್ಥಿಕ ಸೌಲಭ್ಯವನ್ನು ವಿಸ್ತರಿಸಲಾಗಿದೆ.

ಇವರ ವೇತನ ನಿಗದಿಗ ಸಂಬಂಧಿಸಿದಂತೆ, ಪ್ರತ್ಯೇಕ ಆದೇಶವನ್ನು ಹೊರಡಿಸಲಾಗುವುದು. ಅಲ್ಲಿಯವರೆಗೆ ಇವರು ಈಗ ಪಡೆಯುತ್ತಿರುವ ವೇತನವನ್ನು ವಡೆಯಲು ಅನುಮತಿ ನೀಡಲಾಗಿದೆ.

ಕುಲಸಚಿವರಿಂದ ಕರಡು ಅನುಮೋದಿಸಿದೆ

ಆದೇಶದ ಮೇರೆಗೆ

27-1-17

ಸಹಾಯಕ ಕುಲಸಚಿವ(ನಿಬ್ಬಂದಿ)

ಇವರಿಗೆ:

1. ಶ್ರೀಮತಿ.ಎನ್.ನಿರ್ಮಲ, ಶೀಘ್ರಲಿಪಿಗಾರರು, ಆಡಳಿತ ಶಾಖೆ, ಮೈಸೂರು ವಿಶ್ವವಿದ್ಯಾನಿಲಯ, ಮೈಸೂರು
2. ಹಣಕಾಸು ಅಧಿಕಾರಿಗಳು, ಮೈಸೂರು ವಿಶ್ವವಿದ್ಯಾನಿಲಯ, ಮೈಸೂರು.
3. ಉಪಕುಲಸಚಿವ/ಸಹಾಯಕ ಕುಲಸಚಿವ/ಅಧೀಕ್ಷಕ(ನಿಬ್ಬಂದಿ), ಆಡಳಿತ ವಿಭಾಗ, ಮೈಸೂರು ವಿಶ್ವವಿದ್ಯಾನಿಲಯ, ಮೈಸೂರು
4. ಕುಲಪತಿ/ಕುಲಸಚಿವ/ಕುಲಸಚಿವ(ಪರೀಕ್ಷಾಂಗ), ಅವರುಗಳ ಆಪ್ತ ಸಹಾಯಕರು, ಮೈಸೂರು ವಿಶ್ವವಿದ್ಯಾನಿಲಯ, ಮೈಸೂರು
5. ಕಾರ್ಯನಿರ್ವಾಹಕರು, ಇಟಿ6/ಜಿಎಲ್5/9/10, ಆಡಳಿತ ಶಾಖೆ, ಮೈಸೂರು ವಿಶ್ವವಿದ್ಯಾನಿಲಯ, ಮೈಸೂರು
6. ಕಛೇರಿ ಕಡತಕ್ಕೆ.

Sh-Eds/ Orders

- 24 -

1

ಮೈಸೂರು ವಿಶ್ವವಿದ್ಯಾನಿಲಯ



ವಿಷಯ ವೇತನ ನಿಗದಿಗೊಳಿಸುವ ಒಗ್ಗ.

ಉಲ್ಲೇಖ: 1) ವಿ.ವಿ.ಆದೇಶ ಸಂಖ್ಯೆ: ಇಟ/355(55)/2003-04, ದಿನಾಂಕ: 01-08-2006

2) ವಿ.ವಿ.ಆದೇಶ ಸಂಖ್ಯೆ: ಇಟ/5/91/2001-02, ದಿನಾಂಕ: 27-01-2017

ವಿಶ್ವವಿದ್ಯಾನಿಲಯ ಕಾರ್ಯಾಚರಣೆ
ಪ್ರಾಚಾರ್ಯ ಕಛೇರಿ, ಮೈಸೂರು-5

ಆದೇಶ ಸಂಖ್ಯೆ: ಇಟ/6/301/2016-17 ದಿನಾಂಕ 18ನೇ ಫೆಬ್ರವರಿ 2017

ಶ್ರೀಮತಿ ಶ್ರೀಮತಿ ನಿರ್ಮಲಾ ಎಸ್. ಶೀಪ್ರಲಕ್ಷ್ಮಿಗಾರರು, ಆಡಳಿತ ವಿಭಾಗ, ಮೈಸೂರು ವಿಶ್ವವಿದ್ಯಾನಿಲಯ, ಮೈಸೂರು. ಇವರಿಗೆ ಮೇಲಿನ ಉಲ್ಲೇಖಿತ (2) ಆದೇಶದಲ್ಲಿ ಬೆರಳಚ್ಚುಗಾರರು/ಗುಮಾಸ್ತರು ಹುದ್ದೆಯಿಂದ ಶೀಪ್ರಲಕ್ಷ್ಮಿಗಾರರ ಹುದ್ದೆಗೆ ಬದಲಾವಣೆ ಮಾಡಿರುವುದರಿಂದ ದಿನಾಂಕ 01-08-2006 ರಿಂದ ಜಾರಿಗೆ ಬಂದಂತೆ ಕಾರ್ಯನಿರ್ವಾಹಿ ವೇತನವನ್ನು ನಿಗದಿಪಡಿಸಿ, ಹಾಗೂ ಉಲ್ಲೇಖಿತ (2)ರ ಆದೇಶದ ದಿನಾಂಕ ಅಂದರೆ ದಿನಾಂಕ 27-01-2017ರಿಂದ ಆದೇಶ ಸಂಖ್ಯೆಯನ್ನು ಮುಂಬರುವ ಮಾಹಿತಿ ಈ ಕೆಳಕಂಡಂತೆ ವೇತನವನ್ನು ನಿಗದಿಪಡಿಸಲಾಗಿದೆ.

ದಿನಾಂಕ	ಮೇಕನ/ವೇತನ ಶ್ರೇಣಿ	ಪರಾ
ಶೀಪ್ರಲಕ್ಷ್ಮಿಗಾರರಾಗಿ ದಿನಾಂಕ ಮುಕ್ತ ವೇತನ ಶ್ರೇಣಿ	ರೂ.8000/- (8000-2000-8000- 225-9500-250-10500-300- 01-08-2006 12300-350-14400-400-14800)	
01-08-2007	ರೂ.8200/- (8000-14800)	ವಾ.ಮೇ.ಬಡ್ತಿ
01-08-2008	ರೂ.8400/- (8000-14800)	ವಾ.ಮೇ.ಬಡ್ತಿ
01-08-2009	ರೂ.8600/- (8000-14800)	ವಾ.ಮೇ.ಬಡ್ತಿ
01-08-2010	ರೂ.8825/- (8000-14800)	ವಾ.ಮೇ.ಬಡ್ತಿ
01-08-2011	ರೂ.9050/- (8000-14800)	ವಾ.ಮೇ.ಬಡ್ತಿ
01-04-2012	ರೂ.18100/- (16000-400-17200- 450-19000-500-21000-600- 24600-700-28800-800-29600)	2012ರ ಪರಿಷ್ಕೃತ ವೇತನ ಶ್ರೇಣಿಯನ್ನು ವೇತನ ನಿಗದಿ
01-08-2012	ರೂ. 18550-00 (16000- 29600)	ವಾ.ಮೇ.ಬಡ್ತಿ
01-08-2013	ರೂ. 19000-00 (16000- 29600)	ವಾ.ಮೇ.ಬಡ್ತಿ
01-08-2014	ರೂ. 19500-00 (16000- 29600)	ವಾ.ಮೇ.ಬಡ್ತಿ
01-08-2015	ರೂ. 20000-00 (16000- 29600)	ವಾ.ಮೇ.ಬಡ್ತಿ
01-08-2016	ರೂ. 20500-00 (16000- 29600)	ವಾ.ಮೇ.ಬಡ್ತಿ
ಮುಂಚಿನ ಪಾರ್ಸಿಂಗ್ ವೆಚ್ಚದ ಬಡ್ತಿಯ ದಿನಾಂಕ 01-08-2017		

ಈ ವಿವರವನ್ನು ಸದರಿ ನೌಕರರ ಸೇವಾ ಮುಕ್ತಕದಲ್ಲೆ ತಕ್ಷಣದಿಂದ ದಾಖಲಿಸುವುದು.

ಕುಲಸಚಿವರಿಂದ ಕರೆದು ಅನುಮೋದಿಸಲಾಗಿದೆ.

ದವರಿಗೆ:

ಅಧೀಶದ ಮೇರೆಗೆ.

ಸಹಾಯಕ ಕುಲಸಚಿವರು(ಸಿಬ್ಬಂದಿ)

20.2.17

- ಶ್ರೀಮತಿ ಎಸ್. ನಿರ್ಮಲಾ, ಶೀಪ್ರಲಕ್ಷ್ಮಿಗಾರರು, ಆಡಳಿತ ವಿಭಾಗ, ಮೈಸೂರು ವಿಶ್ವವಿದ್ಯಾನಿಲಯ, ಮೈಸೂರು.
- ದಾಖಲಾತಿ ಅಧಿಕಾರಿಗಳು, ಮೈಸೂರು ವಿಶ್ವವಿದ್ಯಾನಿಲಯ, ಮೈಸೂರು.
- ಸರ್ಕಾರಿ ಲೆಕ್ಕಪರಿಶೋಧಕರು, ಮೈಸೂರು ವಿಶ್ವವಿದ್ಯಾನಿಲಯ, ಮೈಸೂರು.
- ಉಪಕುಲಸಚಿವರು (ಸಾಮಾನ್ಯ), ಆಡಳಿತ ವಿಭಾಗ, ಮೈಸೂರು ವಿಶ್ವವಿದ್ಯಾನಿಲಯ, ಮೈಸೂರು.
- ಸಹಾಯಕ ಕುಲಸಚಿವ/ಅಧೀಕ್ಷಕರು (ಸಿಬ್ಬಂದಿ), ಆಡಳಿತ ರಾಜ್ಯ, ಮೈ. ವಿ. ವಿ. ಮೈಸೂರು.
- ಕುಲಪತಿ/ಕುಲಸಚಿವ/ಹಣಕಾಸು ಅಧಿಕಾರಿಗಳ ಆಪ್ತ ಸಹಾಯಕರು, ಮೈಸೂರು ವಿಶ್ವವಿದ್ಯಾನಿಲಯ, ಮೈಸೂರು.
- ಅಧೀಕ್ಷಕರು (ಆಯ-ವ್ಯಯ ಅಂಶಾಂಶ ವಿಭಾಗ), ಹಣಕಾಸು ರಾಜ್ಯ, ಮೈಸೂರು.
- ಕಾರ್ಯನಿರ್ವಾಹಕರು, ಸೆಲ್-10, ಆಡಳಿತ ವಿಭಾಗ, ಮೈಸೂರು.
- ಸಂಬಂಧಪಟ್ಟ ಕಡತಕ್ಕೆ.

ಮೈಸೂರು

ವಿಷಯ: ಕು|| ನಿರ್ಮಲ.ಎನ್ ಶೀಪ್ರಲಿಖಾರರ
ಹುದ್ದೆಯಿಂದ ಶೀಪ್ರಲಿಖಾರ ಹುದ್ದೆಗೆ
ಉಲ್ಲೇಖ: 1. ಎ.ವಿ.ಆದೇಶ ಸಂಖ್ಯೆ ಇಟ.1/355/2006
2. ಎ.ವಿ.ಆದೇಶ ಸಂಖ್ಯೆ ಇಟ.5/364/2006
3. ಎ.ವಿ.ಆದೇಶ ಸಂಖ್ಯೆ ಇಟ.5/91/2006
4. ದಿನಾಂಕ 15.12.2017 ರಂದು ನಡೆದ

ಪ್ರಸ್ತಾವನೆ:

ಶ್ರೀಮತಿ ನಿರ್ಮಲ.ಎನ್. ಇವರು ಉಲ್ಲೇಖ(1)ರ ಆದೇಶದನ್ವಯ ದಿನಾಂಕ 01.8.2006ರಲ್ಲಿ ಬೆರಳಚ್ಚುಗಾರ ಮತ್ತು ಗುಮಾಸ್ತ ಹುದ್ದೆಗೆ. ವಾಯಂ ನೌಕರರಾಗಿ ನೇಮಕಗೊಂಡಿರುತ್ತಾರೆ. ಸದರಿ ಉದ್ಯೋಗಿಯು ಖಾಯಂ ಗೊಳ್ಳುವ ಸಂದರ್ಭದಲ್ಲಿ ವಿಶ್ವವಿದ್ಯಾನಿಲಯದ ಪರಿನಿಯಮಾವಳಿಯನ್ವಯ ಶೀಪ್ರಲಿಖಾರರ ಹುದ್ದೆಗೆ ನಿಗದಿಪಡಿಸಿದ್ದ ವಿದ್ಯಾರ್ಹತೆಯನ್ನು ಹೊಂದಿರುವುದರಿಂದ ಶೀಪ್ರಲಿಖಾರ ಹುದ್ದೆಗೆ ಪದನೋತ್ತಿ ನೀಡುವಂತೆ ಮನವಿ ಸಲ್ಲಿಸಿದ್ದ ಹಿನ್ನೆಲೆಯಲ್ಲಿ ವೃಂದ ಮತ್ತು ನೇಮಕಾತಿ ನಿಯಮಗಳನ್ವಯ ಸದರಿಯವರ ಖಾಯಂ ಪೂರ್ವ ಸೇವಾ ಅವಧಿ ಪೂರ್ಣಗೊಂಡ ದಿನಾಂಕದಿಂದ ಅಂದರೆ ದಿನಾಂಕ 01.8.2008ರಿಂದ ಜಾರಿಗೆ ಬಂದಂತೆ ಉಲ್ಲೇಖ(2)ರ ಆದೇಶದಲ್ಲಿ ಶೀಪ್ರಲಿಖಾರ ಹುದ್ದೆಗೆ ಪದೋನ್ನತಿ ನೀಡಲಾಗಿತ್ತು. ಆದರೆ ಕು|| ನಿರ್ಮಲ.ಎನ್. ಇವರು ಬೆರಳಚ್ಚುಗಾರ/ಗುಮಾಸ್ತ ಹುದ್ದೆಗೆ ಖಾಯಂಗೊಳಿಸುವ ಸಂದರ್ಭದಲ್ಲೇ ಶೀಪ್ರಲಿಖಾರ ಹುದ್ದೆಗಳು ಖಾಲಿಯಿದ್ದು ವಿಶ್ವವಿದ್ಯಾನಿಲಯಗಳ ಪರಿನಿಯಮಾವಳಿಗಳನ್ವಯ ಶೀಪ್ರಲಿಖಾರ ಹುದ್ದೆಯ ವಿದ್ಯಾರ್ಹತೆಯನ್ನು ಹೊಂದಿರುವುದರಿಂದ ದಿನಾಂಕ 01.8.2006 ರಿಂದ ಪೂರ್ವಸ್ವಯವಾಗುವಂತೆ ಹುದ್ದೆಯನ್ನು ಬದಲಾವಣೆ ಮಾಡಿಕೊಡುವಂತೆ ಕೋರಿದ್ದರಿಂದ ಮಾನ್ಯ ಕುಲಪತಿಗಳು ದಿನಾಂಕ 01.8.2006 ರಿಂದ ಜಾರಿಗೆ ಬಂದಂತೆ ಬೆರಳಚ್ಚುಗಾರ/ಗುಮಾಸ್ತ ಹುದ್ದೆಯ ಬದಲಾಗಿ ಶೀಪ್ರಲಿಖಾರ ಹುದ್ದೆಗೆ ಬದಲಾವಣೆ ಮಾಡಲು ಆದೇಶಿಸಿದರಿಂದ ದಿನಾಂಕ 01.8.2006ರಿಂದ ಜಾರಿಗೆ ಬಂದಂತೆ ಬೆರಳಚ್ಚುಗಾರ/ಗುಮಾಸ್ತ ಹುದ್ದೆಯಿಂದ ಶೀಪ್ರಲಿಖಾರ ಹುದ್ದೆಗೆ ಬದಲಾವಣೆ ಮಾಡಲಾಗಿತ್ತು. ಆದರೆ ಇವರಿಗಿಂತ ಮೊದಲು ಟಿ.ಹೆಮಲತ, ಶ್ರೀಮತಿ. ಎಂ.ಶಾರದ ಮತ್ತು ಶ್ರೀಮತಿ ಕೆ.ಎನ್.ಕುಮುದ ಇವರುಗಳು ಶೀಪ್ರಲಿಖಾರ ವೃಂದದ ಜೇಷ್ಠತಾ ಪಟ್ಟಿಯಲ್ಲಿನ ಜೇಷ್ಠತೆಯನ್ನು ಸರಿಪಡಿಸುವಂತೆ ಕೋರಿ ಸಲ್ಲಿಸಿದ್ದ ಮನವಿಯ ಪರಿಶೀಲಿಸಲು ರಚಿಸಿದ್ದ ಸಿಂಡಿಕೇಟ್ ಉಪಸಮಿತಿಯು ಶೀಪ್ರಲಿಖಾರ ಹುದ್ದೆಯ ಜೇಷ್ಠತೆಯನ್ನು ಪರಿಶೀಲಿಸಿ ಕು|| ನಿರ್ಮಲ.ಎನ್. ಇವರಿಗೆ ಉಲ್ಲೇಖಿತ (3)ರ ಆದೇಶದಲ್ಲಿ ಸದರಿ ಉದ್ಯೋಗಿಗೆ ದಿನಾಂಕ 01.8.2006 ರಿಂದ ಜಾರಿಗೆ ಬಂದಂತೆ ಹುದ್ದೆ ಬದಲಾವಣೆ ಮಾಡಿರುವುದನ್ನು ಹಿಂಪಡೆದು ಹುದ್ದೆ ಬದಲಾವಣೆ ಮಾಡಿದ ಕಾರಣ ಕಾಲ್ಪನಿಕವಾಗಿ ವೇತನ ನಿಗದಿಗೊಳಿಸಿ ಆರ್ಥಿಕ ಸೌಲಭ್ಯವನ್ನು ದಿನಾಂಕ 27.1.2017 ರಿಂದ ಇದುವರೆವಿಗೂ ಪಾವತಿಸಿರುವ ಹೆಚ್ಚುವರಿ ಆರ್ಥಿಕ ಸೌಲಭ್ಯವನ್ನು ಲೆಕ್ಕಚಾರ ಮಾಡಿ ಸದರಿ ಉದ್ಯೋಗಿಯ ವೇತನದಿಂದ ಕಡಿತಗೊಳಿಸುವಂತೆ ಸಲ್ಲಿಸಿದ್ದ ವರದಿಯನ್ನು ದಿನಾಂಕ 15.12.2017 ರಂದು ನಡೆದ ಸಿಂಡಿಕೇಟ್ ಸಭೆಯು ಅನುಮೋದಿಸಿದ್ದ ಹಿನ್ನೆಲೆಯಲ್ಲಿ ಈ ಕೆಳಕಂಡ ಆದೇಶ.

ಆದೇಶ ಸಂಖ್ಯೆ ಇಂ.55/21/2001-02, ದಿನಾಂಕ: 27ನೇ ಜನವರಿ 2012

ದಿನಾಂಕ 15.12.2017ರ ಸಿಂಡಿಕೇಟ್ ಸಭೆಯ ನಿರ್ಣಾಯಕತೆಯು ಈ ನಿರ್ಣಯವನ್ನು, ಇದಕ್ಕೆ ಉಲ್ಲೇಖ 02 ರ ಆದೇಶದಲ್ಲಿ ಕೈಗೊಂಡ ಮತ್ತು ನೇಮಕಾತಿ ನಿಯಮಗಳನ್ವಯ ಬೆಂಗಳೂರು ಮತ್ತು ಗುಮಾಸ್ತರು ಹುದ್ದೆಯಿಂದ ತೀರ್ಪುಹಾಕಿದಾಗ ಮತ್ತೆ 01.8.2008 ರಿಂದ ಜಾರಿಗೆ ಬರುವಂತೆ ಪದೋನ್ನತಿಯನ್ನು ನೀಡಿರುವುದನ್ನು ಖಾತೆ: ಮಾನ್ಯಾಡಳಿತ ಉಲ್ಲೇಖ 02ರ ಆದೇಶದ ವಿವರಗಳಿಗಾಗಿ ಅಂದರೆ ದಿನಾಂಕ 15.10.2014 ರಿಂದ ಜಾರಿಗೆ ಬಂದಂತೆ ತೀರ್ಪುಹಾಕಿದ ಕುಡ್ಲೆಗೆ ಪದೋನ್ನತಿ ನೀಡಲಾಗಿದೆ ಎಂದು ದರಿಪತ್ರ ಆದೇಶ ನೀಡಲಾಗಿದೆ.

ಹಾಗೆಂದೇ ಉಲ್ಲೇಖ 02ರ ಅನುಬಂಧವನ್ನು ಹಿಂಪಡೆಯಲಾಗಿದೆ ಹಾಗೂ ದಿನಾಂಕ 01.08.2008 ರಿಂದ ಕಾಲ್ಪನಿಕವಾಗಿ ವೇತನ ನಿರ್ಧಾರಾಧಿಪತಿ ಅಧೀನ ಸೌಲಭ್ಯವನ್ನು ದಿನಾಂಕ 27.12.2017 ರಿಂದ ವಿಸ್ತರಿಸಿರುವ ಉಲ್ಲೇಖ 04ರ ಆದೇಶವನ್ನು ಸಹ ಹಿಂಪಡೆಯಲಾಗಿದೆ ಮತ್ತು ದಿನಾಂಕ 27.12.2017 ರಿಂದ ಇದುವರೆಗಾಗಿ ಪಾವತಿಸಿರುವ ಬೆಂಚ್ಚುವರಿ ಆರ್ಥಿಕ ಸೌಲಭ್ಯವನ್ನು ಪ್ರಗತಿಯಲ್ಲಿರುವ ಮೂಲ: ಪದೋನ್ನತಿ ವೇತನದಿಂದ ಕಡಿತಗೊಳಿಸಲು ಸಹ ಆದೇಶಿಸಲಾಗಿದೆ.

ಆದೇಶದ ಮೇರೆಗೆ,

ಉಪಕುಲಸಚಿವ(ಸಾಮಾನ್ಯ)

ಇವರಿಗೆ,

1. ಸು|| ನಿರ್ಮಲ.ಎನ್. ತೀರ್ಪುಹಾಕಿದರು. ಆಡಳಿತ ಶಾಖೆ, ಮೈ.ವಿ.ವಿ.ನಿಲಯ, ಬೈಲೂರು.
2. ಹಣಕಾಸು ಅಧಿಕಾರಿಗಳು, ಮೈ.ವಿ.ವಿ.ನಿಲಯ, ಮೈಸೂರು.
3. ಅಪರ ನಿರ್ದೇಶಕರು, ಕರ್ನಾಟಕ ರಾಜ್ಯ ಲೆಕ್ಕ ಪರಿಶೋಧನೆ ಮತ್ತು ಲೆಕ್ಕ ಸಪ್ತ ಶಾಖೆ, ಪ್ರಾಂತೀಯ ಕಛೇರಿ ಮೈಸೂರು ವಿಭಾಗ, ಜಯನಗರ, ಮೈಸೂರು.
4. ಉಪಕುಲಸಚಿವರು(ಸಾಮಾನ್ಯ), ಆಡಳಿತ ಶಾಖೆ, ಮೈ.ವಿ.ವಿ.ನಿಲಯ, ಮೈಸೂರು.
5. ಸಹಾಯಕ ಕುಲಸಚಿವ(ಅನುಬಂಧ/ಸಿಬ್ಬಂದಿ/ಸಾಮಾನ್ಯ), ಆಡಳಿತ ಶಾಖೆ, ಮೈ.ವಿ.ವಿ.
6. ಕಾರ್ಯನಿರ್ವಹಣರು ಜಿಎಲ್.ಐ. 5, ಆಡಳಿತ ಶಾಖೆ, ಮೈ.ವಿ.ವಿ.ನಿಲಯ, ಮೈಸೂರು.
7. ಕುಲಪತಿ/ಕುಲಸಚಿವ/ಹಣಕಾಸು ಅಧಿಕಾರಿಗಳ ಲಪ್ಪ ಸಹಾಯಕರು, ಮೈ.ವಿ.ವಿ.ನಿಲಯ, ಮೈಸೂರು.
2. ಕಛೇರಿ ಪ್ರತಿ.

- (b) For Promotion—(i) Must have passed SSLC examination or any other examination recognised as equivalent thereto by the Government;
(ii) Must have passed University Departmental Test (Advanced Grade)

Period of Probation: Two years

Method of Recruitment: (i) 50% by Direct Recruitment under Section 51 of the KSU Act, 1976; (ii) 50% by Promotion from among the cadre of Second Division Clerks on the basis of Seniority-cum-merit and subject to fulfilment of minimum qualifications prescribed 'For Promotion' under 2 (b) above.

4. Second Division Clerks

Scale of Pay: Rs. 300-10-340-15-400-20-500-25-600-Extn. 20-700

Minimum qualification prescribed—

- (a) For Direct Recruitment—A pass in SSLC examination or any other examination recognised as equivalent thereto by the Government.
(b) For promotion—(i) Must have passed SSLC examination or any other examination recognised as equivalent thereto by the Government.
(ii) Must have put in a total service of not less than a period of three years in one or more cadres of Class IV/Attenders.

Period of Probation: Two years

Method of Recruitment: (i) 75% by Direct Recruitment under Section 51 of the KSU Act, 1976 and (ii) 25% by promotion from among the employees working under Class IV posts—Dafedar, Jamedar and Attenders on seniority-cum-merit basis subject to fulfilment of minimum qualifications prescribed for promotion under (b) above.

5. Stenographers

For Direct Recruitment—

- (a) A Pass in S.S.L.C. examination or possesses an equivalent examination.
(b) Senior Typewriting and Senior Shorthand examination in Kannada conducted by the Department of Public Instruction or is a holder of Diploma in Secretarial Practice with Kannada Shorthand and Kannada Typewriting as Optional (elective) subjects granted by the Board of Technical Education in Karnataka or possesses an equivalent qualification.

* Amendments to the Statutes were assented to by the Chancellor on 3-5-1986. Communicated by the Government vide Letter No. ED 17 UMS 84 dated 15-5-1986. Notified by the University vide No. AS 155/79-80 dated 16-6-1986. These statutes shall be deemed to have come into force with effect from 26-10-1983. Reppeal and Savings: Any Rules or Statutes relating to recruitment to the cadre of Stenographers, Typists-cum-clerks (English and Kannada) in force immediately before the commencement of these Statutes are repealed; Provided that the said repeal shall not affect the operation of the said Rules/Statutes of anything duly done or suffered thereunder or affect any right, liability or obligation acquired or incurred under the said Rules/Statutes.

(c) Senior Typewriting and Senior Shorthand examination in English conducted by the Department of Public Instruction or is a holder of Diploma in Secretarial Practice with English Shorthand and English Typewriting as optional (elective) subjects granted by the Board of Technical Education in Karnataka or possesses an equivalent qualification.

Note: If adequate number of candidates with the qualification mentioned at (b) and (c) above are not available on any occasion of recruitment, for the vacancies which remain unfilled, candidates who possess qualifications at (b) above shall be eligible for recruitment on the same occasion of recruitment.

For Promotion

(a) A pass in Senior Typewriting and Senior Shorthand examination in Kannada conducted by the Department of Public Instruction or is a holder of a Diploma in Secretarial Practice with Kannada Shorthand as optional (elective) subjects granted by the Board of Technical Education in Karnataka or possesses an equivalent qualification.

(b) A pass in Senior Typewriting and Senior Shorthand examinations in English conducted by the Department of Public Instruction or is a holder of a Diploma in Secretarial Practice with English Shorthand as optional (elective) subject granted by the Board of Technical Education in Karnataka or possesses an equivalent qualification.

Note: If adequate number of Typists-cum-Clerks with the qualifications mentioned at (a) and (b) above are not available on any occasion of promotion for vacancies which remain unfilled, Typists-cum-Clerks who possess the qualification at (a) above shall be eligible for promotion on the same occasion of promotion.

It is provided that these rules shall not be applicable to Typists-cum-Clerks who are already in service on the date of commencement of these Statutes for a period of three years from the date of such commencement and during the said period of three years they shall be eligible for promotion on the posts of Stenographic if they

(a) have passed the Senior Shorthand Examination in English or Kannada conducted by the Department of Public Instruction, or

(b) are holders of a Diploma in Secretarial Practice with English or Kannada as optional (elective) subject granted by the Board of Technical Education in Karnataka or

(c) possess an equivalent qualification.

It is provided that these rules shall not be applicable to Typists-cum-Clerks who are already in service on the date of commencement of these Statutes for a period of three years from the date of such commencement and during the said period of three years they shall be eligible for promotion on the posts of Stenographic if they

(a) have passed the Senior Shorthand Examination in English or Kannada conducted by the Department of Public Instruction, or

(b) are holders of a Diploma in Secretarial Practice with English or Kannada as optional (elective) subject granted by the Board of Technical Education in Karnataka or

(c) possess an equivalent qualification.

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

PRESENTATION FORM

No. _____

Serial No. _____
Advocate Sri

_____ District
Between

_____ And

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IN THE HIGH COURT OF KARNATAKA AT BANGALORE

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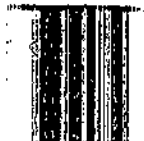
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1.	I-A	33	
2.	Affidavit.	34	

Place

Date

Advocate for

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IN THE HIGH COURT OF KARNATAKA, BANGALORE

BETWEEN: W.P. No. / 2018(UOM)

Nirmala N.

...Petitioner

AND:

State of Karnataka & Others

...Respondents

APPLICATION U/S. 151 OF CPC FOR DISPENSATION

The Petitioner above named begs to submit as follows:

1. In the above case the Petitioner have challenged the Order No ET/91/2001-2002 dated 18.01.2018 passed by the Respondent No.2 vide **Annexure F**. The Petitioner has filed the Xerox copy of the same. The Petitioner has applied for certified copy of the Annexure-F before the competent Authority.
2. It is further submitted that the Petitioner will undertake to furnish the certified copies of the same within four weeks. Hence, this application for dispensation.
3. If this application is not allowed, the Petitioner will be put to great hardship.

Wherefore the Petitioner prays that this Hon'ble Court be pleased to dispense with the production of certified copy of the Order No ET/91/2001-2002 dated 18.01.2018 passed by the Respondent No.2 vide **Annexure F**, in the interest of justice and equity.

Bangalore

Date:

Advocate for Petitioner,
Amruth S Chowdhary



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IN THE HIGH COURT OF KARNATAKA, BANGALORE

W.P. No. / 2018(UOM)

BETWEEN:

Nirmala N.

...Petitioner

AND:

State of Karnataka & Others

...Respondents

VERIFYING AFFIDAVIT

I, Kum N.Nirmala D/o. Narashimajah, Aged about 50 years, Residing at #598/1, Peerkhan Street, Nazārbad, Mysore-570010, Now in Bangalore, do hereby solemnly affirm and state on oath as follows:

1. I am the Petitioner No.1 in the above case and I know the facts of case. Hence, I am swearing to this affidavit.

2. The statements made in paras 1 to 3 of the accompanying application to this affidavit are true to the best of my knowledge, information and belief. I believe them to be true and correct.

Bangalore

Date:

Identified by me

L. Nirmala N.

Advocate.

Nos. of corrections:

DEPONENT.

